EXHIBIT "A"

ORDINANCE NO.

AN ORDINANCE OF THE VOTERS OF THE CITY OF LOS BANOS TO AMEND THE MUNICIPAL CODE TO MAKE THE OFFICE OF CITY TREASURER AN APPOINTIVE OFFICE, SUBJECT TO APPROVAL BY A VOTE OF THE PEOPLE

THE PEOPLE OF THE CITY OF LOS BANOS DO HEREBY ORDAIN AS FOLLOWS:

SECTION 1. PURPOSE.

WHEREAS, State law requires that every general law city have the position of City Treasurer; and

WHEREAS, by default this office is filled by election; and

WHEREAS, in Los Banos the office of the City Treasurer is presently filled by election; and

WHEREAS, this office has not had a contested election in at least a decade; and

WHEREAS, the City nevertheless incurs costs related to opening the office for election every four years; and

WHEREAS, section 36508 of the California Government Code provides that the City Council of a general law city may submit to the electors the question of whether any officers of the City, except council persons, shall be appointed by the City Council; and

WHEREAS, the trend in California is toward appointment of the position of city treasurer; and

WHEREAS, the administration of local government has become more complex over time, increasingly requiring specialized skills and ever-greater professional training, education, experience, and certification; and

WHEREAS, city treasurers are responsible for investing and safekeeping City funds, requiring a person who possesses technical experience and knowledge of public investments, and meaning that individuals elected in the future could cause serious financial problems if an unqualified individual were elected to perform the city treasurer's responsibilities; and

WHEREAS, pursuant to state law, candidates to serve as an elective city treasurer are limited to residents and registered voters within the city itself; and

WHEREAS, the most qualified candidates may not always reside within the City limits; and

WHEREAS, pursuant to state law that residency restriction would not apply to this office if appointed; and

WHEREAS, the Council supports the conversion of this office to an appointed office;

WHEREAS, the purpose of this measure is to convert the office of city treasurer to an appointed office in accordance with the terms of the California Government Code.

SECTION 2. AMENDMENT TO CODE REGARDING APPOINTMENT OF CITY TREASURER.

Title 2, Chapter 3, of the Los Banos Municipal Code is amended to add Article 5 thereto, to read as follows:

Article 5. City Treasurer. Sec. 2-3.601 City Treasurer - Appointment. Pursuant to California Government Code sections 36508 to 36510, the city treasurer shall be appointed by and serve at the pleasure of the City Council. The City Council shall appoint a treasurer upon the expiration of the current term of the treasurer now in office, or upon a vacancy in the office. Pursuant to Government Code section 36510, the treasurer so appointed is not required to be a resident or elector in the City. As provided in Government Code section 36510, the City Council may by ordinance vest in the city manager its authority to appoint such officer.

SECTION 4. EFFECTIVE DATE. Pursuant to California Elections Code section 9217, this Ordinance shall be in full force and effect ten (10) days after the certification by the City Council of the election returns indicating passage of the Ordinance by a majority of the voters casting votes in the election.

SECTION 5. INCONSISTENCIES. To the extent that the terms and provisions of this Ordinance may be inconsistent or in conflict with the terms or conditions of any prior City ordinance, motion, resolution, rule or regulation governing the same subject, the terms of this Ordinance shall prevail with respect to the subject matter thereof.

SECTION 6. INTERPRETATION. In interpreting this Ordinance or resolving any ambiguity, this Ordinance shall be interpreted in a manner that effectively accomplishes its stated purposes.

SECTION 7. SEVERABILITY. If any section, subsection, subdivision, sentence, clause, phrase, or portion of this Ordinance, is for any reason held to be invalid or unconstitutional by the decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Ordinance. The People of the City of Los Banos hereby declare that they would have adopted this Ordinance, and each section, subsection, subdivision, sentence, clause, phrase, or portion thereof,

irrespective of the fact that anyone or more sections, subsections, subdivisions, sentences, clauses, phrases, or portions thereof be declared invalid or unconstitutional.

SECTION 8. PUBLICATION. The City Clerk is directed to cause a copy of this Ordinance to be published in the official newspaper at least once within ten (10) days after the certification of the election results by the City Council.

SECTION 9. ATTESTATION. The Mayor is hereby authorized to attest to the adoption of this ordinance by signing where indicated below.

I hereby certify that the foregoing ordinance was PASSED, APPROVED, AND ADOPTED by the People of the City of Los Banos, duly voting at an election called therefore on 3rd day of November, 2026.

_____
By: Michael S. Amabile, Mayor

ATTEST:

_____
Lucille L. Mallonee, City Clerk